

Chanchal Rana vs State Of Himachal Pradesh& Others on 10 January, 2024

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr.MMO No. 644, 645 and 646 of 2021 Reserved on: 11.12.2023 .

Date of Decision: 10th January, 2024

1. Cr.MMO No. 644 of 2021 Chanchal RanaPetitioner of Versus State of Himachal Pradesh& Others rt ...Respondents

2. Cr.MMO No. 645 of 2021 Gurdyal SinghPetitioner Versus State of Himachal Pradesh & OthersRespondents Rajinder Kaur ...Petitioner Versus State of Himachal Pradesh & Others ...Respondents Coram Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting? No. Whether reporters of the local papers may be allowed to see the judgment? Yes For the Petitioner(s) : Mr. Kuldeep Singh Chandel, Advocate in all the petitions.

For the Respondents : Mr. R.P.Singh, Deputy Advocate General for Respondents No.1 and .

2/State in all the petitions Mr. Rajesh Kashyap, Advocate, for Respondent No.3 in all the petitions.

Rakesh Kainthla, Judge The informant/respondent No. 3 was married to the of petitioner Chanchal Rana in the year 2020 as per Hindu rites and customs. The informant and her family members spent more money than their capacity to meet the demands raised by the petitioners and their family members. Adequate gifts were provided to the petitioners and their family members. The mother-in-law of the informant took her ornaments and told her that she could take them as and when needed. The informant demanded the ornaments but these were not returned to her. The petitioner Chanchal Rana was serving in the Bank of India in Madhya Pradesh and he left for his job after 10 days of the marriage. The mother-in-law of the informant started taunting her by saying that the rooms of her house were empty and the informant and her family members had not provided sufficient dowry to fill them. 15,000/- was demanded from the informant and she was told to meet the household expenses. Her parents-

in-law used to taunt her on trivial matters. Whenever the informant would narrate these facts to her husband, he would ask .

her to meet their demands. The petitioner Chanchal Rana and his father used to ask as to why a small vehicle was provided instead of a big vehicle should have been provided. They asked the of informant to sell the vehicle and buy a large vehicle. The petitioner Chanchal Rana used to pressurise the informant to get him transferred even after spending the money. He demanded money from the informant. The informant replied that a lot of money was spent on the marriage on which the petitioner Chanchal Rana said that the informant should obtain a loan from the bank. The informant's mother-in-law used to say that she required a gold necklace on her 31 st marriage

anniversary. She taunted her by saying that girls gift gold KADA to their mother-

in-law but she had not gifted anything. The informant narrated this incident to her husband and he asked her to comply with these demands. When the informant expressed her inability to meet the demands, she was abused by her husband. She was not permitted to meet her husband on Karwachauth. She was also not allowed to meet her parents. When the informant was unable to meet the petitioner's demands, a false complaint was made against her before the Alternative Dispute Resolution, Una, H.P. The petitioner Chanchal Rana left the matrimonial home after .

making the complaint in Alternative Dispute Resolution, Una, H.P. The petitioners said that they would get Chanchal Rana married within 10 days. The informant was harassed mentally and of physically. She was asked to do household chores and to eat three days-old vegetables. Her articles were misappropriated by her parents-in-law. She was not permitted to take her clothes and other articles. The matter was reported to the police, who registered the F.I.R. and conducted the investigation.

2. The petitioners filed the present petitions for quashing the F.I.R. It was asserted that the F.I.R. filed by the informant is just a counterblast to the legal notice issued by the petitioner Chanchal Rana for divorcing the informant. The marriage between the parties was not consummated due to the indifferent attitudes of the informant. The petitioner took the informant to her parental home so that she could be counselled but the informant refused to cohabit with the petitioner. The petitioner made a report to the District Legal Services Authority (Alternative Dispute Resolution Centre) Una, H.P. The Secretary, District Legal Services Authority, Una, called the informant on 03.11.2020.

However, the informant left her matrimonial home and went to her parental home with all jewellery. She returned to her .

matrimonial home on 06.11.2020 and took all her articles with her. The conciliation proceedings continued before the District Legal Services Authority Una, H.P. till February 2021 but the of situation did not improve. The petitioner Chanchal Rana issued a notice to the informant as to why he should not file appropriate proceedings for declaration of their marriage as nullity or divorce.

rt The petitioner Chanchal Rana withdrew the application on 04.09.2021. He filed a petition for seeking divorce and returned all the informant's jewellery on 05.02.2021. The informant filed a false complaint against the petitioners on 17.02.2021. The allegations in the F.I.R. are false because the informant had submitted in the reply to the legal notice that she enjoyed every function and the marriage ceremony till October 2020, which shows that she was not subjected to any cruelty. The statement made by the informant is false, which is apparent from the comparison of the complaint and her statement made under Section 161 of Cr.P.C. The F.I.R. is a counterblast to the proceedings initiated by the petitioner's husband. Therefore, it was prayed that the present petitions be allowed and the F.I.R. be quashed.

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3. The State has filed a reply making preliminary submissions regarding lack of locus standi and the petitioners having not come to the Court with clean hands. It was asserted that the police conducted the investigation impartially and as per of the law. The police filed a chargesheet against Chanchal Rana and Gurdial Singh for the commission of an offence punishable under Section 498-A of the IPC and against Rajinder Kaur for the commission of offence punishable under Sections 498-A and 406 of the IPC. The matter was listed for service on 26.03.2022.

Sufficient evidence was collected by the police to justify the filing of the chargesheet. Hence, It was prayed that the present petition be dismissed.

4. Rejoinders denying the contents of the replies and affirming those of the petitions were filed.

5. I have heard Mr. Kuldeep Singh Chandel, learned counsel for the petitioners, Mr. R.P.Singh, learned Deputy Advocate General for respondents No.1 and 2 and Mr. Rajesh Kashyap, learned counsel for respondent No.3.

6. Mr Kuldeep Singh Chandel, learned counsel for the petitioners submitted that a false F.I.R. was lodged by the informant as a counterblast to the divorce petition filed by her .

husband. The falsity of the F.I.R. is apparent from the comparison of her statement under Section 161 of Cr.P.C. with the FIR. The continuation of the proceedings will amount to the of abuse of the process of the law. Therefore, it was prayed that the present petition be allowed. Reliance was placed upon the judgment of the Hon'ble Supreme Court in Mohammad Wajid & Another vs State of U.P. & ors. in Criminal appeal No. 2340 of 2023 and judgment of this Court in Sanjay Sharma & others Vs. State of H.P. & another, in CRMMO No. 360 of 2017, decided on 29th June 2022 in support of his submission.

7. Mr R.P. Singh learned Deputy Advocate General for respondents No. 1 and 2 submitted that the police conducted the investigation and filed a charge sheet. The remedy of the petitioners is to approach the learned Trial Court and seek their discharge. The present petitions are not maintainable; therefore, he prayed that the present petitions be dismissed.

8. Mr. Rajesh Kashyap, learned counsel for respondent No.3 adopted the submissions of Mr. R.P.Singh, learned Deputy Advocate General and prayed that the present petitions be .

dismissed.

9. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

of

10. The principles of exercising the jurisdiction under Section 482 of Cr.P.C. were laid down by the Hon'ble Supreme Court in Supriya Jain v. State of Haryana, 2023 SCC OnLine SC 765:

(2023) 7 SCC 711 wherein it was observed at page 716:-

17. The principles to be borne in mind with regard to the quashing of a charge/proceedings either in the exercise of jurisdiction under Section 397CrPC or Section 482CrPC or together, as the case may be, has engaged the attention of this Court many a time. Reference to each and every precedent is unnecessary. However, we may profitably refer to only one decision of this Court where upon a survey of almost all the precedents on the point, the principles have been summarised by this Court succinctly. In *Amit Kapoor v.*

Ramesh Chander [*Amit Kapoor v. Ramesh Chander*, (2012) 9 SCC 460 : (2012) 4 SCC (Civ) 687 : (2013) 1 SCC (Cri) 986], this Court laid down the following guiding principles : (SCC pp. 482-84, para 27) "27. ...27.1. Though there are no limits to the powers of the Court under Section 482 of the Code but the more the power, the more due care and caution is to be exercised in invoking these powers. The power of quashing criminal proceedings, particularly, the charge framed in terms of Section 228 of the Code should be exercised very sparingly and with circumspection and that too in the rarest of rare cases. 27.2. The Court should apply the test as to whether the uncontroverted allegations as made from the record of .

the case and the documents submitted therewith prima facie establish the offence or not. If the allegations are so patently absurd and inherently improbable that no prudent person can ever reach such a conclusion and where the basic ingredients of a criminal offence are not satisfied then the Court may interfere.

of 27.3. The High Court should not unduly interfere. No meticulous examination of the evidence is needed for considering whether the case would end in conviction or not at the stage of framing of charge or quashing of rt charge.

27.4. Where the exercise of such power is absolutely essential to prevent patent miscarriage of justice and for correcting some grave error that might be committed by the subordinate courts even in such cases, the High Court should be loath to interfere, at the threshold, to throttle the prosecution in the exercise of its inherent powers.

27.5. Where there is an express legal bar enacted in any of the provisions of the Code or any specific law in force to the very initiation or institution and continuance of such criminal proceedings, such a bar is intended to provide specific protection to an accused.

27.6. The Court has a duty to balance the freedom of a person and the right of the complainant or prosecution to investigate and prosecute the offender. 27.7. The process of the court cannot be permitted to be used for an oblique or ultimate/ulterior purpose. 27.8. Where the allegations made and as they appeared from the record and documents annexed therewith to predominantly give rise to and constitute a "civil wrong" with no "element of criminality" and does not satisfy the basic ingredients of a criminal offence, the court may be justified in quashing the charge. Even in .

such cases, the court would not embark upon the critical analysis of the evidence. 27.9. Another very significant caution that the courts have to observe is that it cannot examine the facts, evidence and materials on record to determine whether there is sufficient material on the basis of which the case would end in a conviction; the court is concerned primarily with the allegations taken as a whole whether they will constitute an offence and, if so, is it an abuse of the process of court leading to injustice.

rt 27.10. It is neither necessary nor is the court called upon to hold a full-fledged enquiry or to appreciate evidence collected by the investigating agencies to find out whether it is a case of acquittal or conviction. 27.11. Where allegations give rise to a civil claim and also amount to an offence, merely because a civil claim is maintainable, does not mean that a criminal complaint cannot be maintained.

27.12. In the exercise of its jurisdiction under Section 228 and/or under Section 482, the Court cannot take into consideration external materials given by an accused for reaching the conclusion that no offence was disclosed or that there was the possibility of his acquittal. The Court has to consider the record and documents annexed therewith by the prosecution. 27.13. Quashing of a charge is an exception to the rule of continuous prosecution. Where the offence is even broadly satisfied, the Court should be more inclined to permit a continuation of prosecution rather than its quashing at that initial stage. The Court is not expected to marshal the records with a view to deciding the admissibility and reliability of the documents or records but is an opinion formed *prima facie*. 27.14. Where the chargesheet, reported under Section 173(2) of the Code, suffers from fundamental legal

defects, the Court may be well within its jurisdiction to frame a charge.

27.15. Coupled with any or all of the above, where the Court finds that it would amount to an abuse of process of the Code or that the interest of justice favours, otherwise it may quash the charge. The power is to be exercised *ex debito justitiae*, i.e. to do real and of substantial justice for administration of which alone, the courts exist.

27.16. These are the principles which individually and preferably cumulatively (one or more) be taken into rt consideration as precepts to exercise extraordinary and wide plenitude and jurisdiction under Section 482 of the Code by the High Court. Where the factual foundation for an offence has been laid down, the courts should be reluctant and should not hasten to quash the proceedings even on the premise that one or two ingredients have not been stated or do not appear to be satisfied if there is substantial compliance with the requirements of the offence."

11. Similar is the judgment in *Gulam Mustafa v. State of Karnataka*, 2023 SCC OnLine SC 603 wherein it was observed:-

26. Although we are not for verbosity in our judgments, a slightly detailed survey of the judicial precedents is in order. In *State of Haryana v. Bhajan Lal*, 1992 Supp (1) SCC 335, this Court held:

"102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of .

any court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised.

(1) Where the allegations made in the first of information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

(2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

(3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

(4) Where the allegations in the FIR do not constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(6) Where there is an express legal bar engrafted in .

any of the provisions of the Code or the concerned Act (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party.

of (7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

103. We also give a note of caution to the effect that the power of quashing a criminal proceeding should be exercised very sparingly and with circumspection and that too in the rarest of rare cases; that the court will not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint and that the extraordinary or inherent powers do not confer an arbitrary jurisdiction on the court to act according to its whim or caprice."

(emphasis supplied)

12. It was laid down in *CBI v. Aryan Singh*, 2023 SCC OnLine SC 379, that the High Court cannot conduct a mini-trial while exercising jurisdiction under Section 482 of Cr.P.C. The allegations are required to be proved during the trial by leading evidence. It was observed:

10. From the impugned common judgment and order passed by the High Court, it appears that the High Court has dealt with the proceedings before it, as if, the High Court was conducting a mini-trial and/or the High Court was .

considering the applications against the judgment and order passed by the learned Trial Court on conclusion of trial. As per the cardinal principle of law, at the stage of discharge and/or quashing of the criminal proceedings, while exercising the powers under Section 482 Cr. P.C., the Court is not required to conduct the mini-trial. The High Court in the common impugned judgment and order has observed that the charges against the accused are not of proved. This is not the stage where the prosecution/investigating agency is/are required to prove the charges. The charges are required to be proved during the trial based on the evidence led by the rt prosecution/investigating agency. Therefore, the High Court has materially erred in going into detail in the allegations and the material collected during the course of the investigation against the accused, at this stage. At the stage of discharge and/or while exercising the powers under Section 482 Cr. P.C., the Court has very limited jurisdiction and is required to consider "whether any sufficient material is available to proceed further against the accused for which the accused is required to be tried or not".

13. This position was reiterated in *Abhishek v. State of M.P.* 2023 SCC OnLine SC 1083, wherein it was observed:

12. The contours of the power to quash criminal proceedings under Section 482 Cr. P.C. are well defined.

In *V. Ravi Kumar v. State represented by Inspector of Police, District Crime Branch, Salem, Tamil Nadu* [(2019) 14 SCC 568], this Court affirmed that where an accused seeks quashing of the FIR, invoking the inherent jurisdiction of the High Court, it is wholly impermissible for the High Court to enter into the factual arena to adjudge the correctness of the allegations in the complaint. In *Neeharika Infrastructure (P). Ltd. v. State of Maharashtra* [Criminal Appeal No. 330 of 2021, decided on 13.04.2021], a 3-Judge Bench of this Court elaborately considered the scope and extent of the power .

under Section 482 Cr. P.C. It was observed that the power of quashing should be exercised sparingly, with circumspection and in the rarest of rare cases, such standard not being confused with the norm formulated in the context of the death penalty. It was further observed that while examining the FIR/complaint, quashing of which is sought, the Court cannot embark upon an enquiry as to the reliability or genuineness or otherwise of the allegations made therein, but if the Court thinks fit, regard being had to the parameters of quashing and the self-restraint imposed by law, and more particularly, the parameters laid down by this Court in *R.P. Kapur v. State of Punjab* (AIR 1960 SC 866) and *State of Haryana v. Bhajan Lal* [(1992) Supp (1) SCC 335], the Court would have jurisdiction to quash the FIR/complaint.

14. It is apparent from these judgments that power under Section 482 of Cr.P.C. can be exercised to prevent the abuse of process or secure the ends of justice. The Court can quash the F.I.R. if the allegations do not constitute an offence or make out a case against the accused. However, it is not permissible for it to conduct a mini-trial to arrive at such findings.

15. Mr. Kuldeep Singh Chandel, learned counsel for the petitioners has relied upon various annexures to submit that the present FIR has been filed as a counterblast to the divorce petition filed by the petitioner's husband. He also relied upon the copy of the reply stated to have been filed by the informant before the Court. These documents can not be seen at this stage. It was laid down by Hon'ble Supreme Court in *MCD v. Ram Kishan* .

Rohtagi, (1983) 1 SCC 1: 1983 SCC (Cri) 115, that the proceedings can be quashed if on the face of the complaint and the papers accompanying the same no offence is constituted. It is not of permissible to add or subtract anything. It was observed:

"10. It is, therefore, manifestly clear that proceedings against an accused in the initial stages can be quashed only if on the face of the complaint or the papers accompanying the same, no offence is constituted. In other words, the test is that taking the allegations and the complaint as they are, without adding or subtracting anything, if no offence is made out then the High Court will be justified in quashing the proceedings in exercise of its powers under Section 482 of the present Code."

16. Madras High Court also held in *Ganga Bai v. Shriram*, 1990 SCC OnLine MP 213: ILR 1992 MP 964: 1991 Cri LJ 2018, that the fresh evidence is not permissible or desirable in the proceedings under Section 482 of Cr.P.C. It was observed:

"Proceedings under Section 482, Cr.P.C. cannot be allowed to be converted into a full-dressed trial. Shri Maheshwari filed a photostate copy of an order dated 28.7.1983, passed in Criminal Case No. 1005 of 1977, to which the present petitioner was not a party. Fresh evidence at this stage is neither permissible nor desirable. The respondent by filing this document is virtually introducing additional evidence, which is not the object of Section 482, Cr.P.C."

17. Andhra Pradesh High Court also took a similar view in *Bharat Metal Box Company Limited, Hyderabad and Others vs. G. K. Strips Private Limited and another*, 2004 STPL 43 AP, and held:

"9. This Court can only look into the complaint and the documents filed along with it and the sworn statements of the witnesses if any recorded. While judging the correctness of the proceedings, it cannot look into the documents, which are not filed before the lower Court. Section 482 Cr.PC debars the Court to look into fresh documents, in view of the principles laid down by the Supreme Court in *State of Karnataka v. M. Devendrappa and another*, 2002 (1) Supreme 192. The relevant portion of the said judgment reads as follows:

rt "The complaint has to be read as a whole. If it appears that on consideration of the allegations, in the light of the statement made on oath of the complainant that the ingredients of the offence or offences are disclosed and there is no material to show that the complaint is mala fide, frivolous or vexatious, in that event there would be no justification for interference by the High Court. When information is lodged at the Police Station and an offence is registered, then the mala fides of the informant would be of secondary importance. It is the material collected during the investigation and evidence led in Court, which decides the fate of the accused person. The allegations of mala fides against the informant are of no consequence and cannot by itself be the basis for quashing the proceedings".

18. A similar view was taken in *Mahendra K.C. v. State of Karnataka*, (2022) 2 SCC 129 : (2022) 1 SCC (Cri) 401 wherein it was observed at page 142:

"16. ... the test to be applied is whether the allegations in the complaint as they stand, without adding or detracting from the complaint, prima facie establish the ingredients of the offence alleged. At this stage, the High Court cannot test .

the veracity of the allegations nor for that matter can it proceed in the manner that a judge conducting a trial would, on the basis of the evidence collected during the course of the trial."

19. This position was reiterated in *Supriya Jain v. State of Haryana*, (2023) 7 SCC 711: 2023 SCC OnLine SC 765 wherein it was held:

13. All these documents which the petitioner seeks to rely on, if genuine, could be helpful for her defence at the trial but the same are not material at the stage of deciding whether quashing as prayed for by her before the High Court was warranted or not. We, therefore, see no reason to place any reliance on these three documents.

20. A similar view was taken in *Iveco Magirus Brandschutztechnik GMBH v. Nirmal Kishore Bhartiya*, 2023 SCC OnLine SC 1258, wherein it was observed:

55. Adverting to the aspect of the exercise of jurisdiction by the High Courts under section 482, Cr. P.C., in a case where the offence of defamation is claimed by the accused to have not been committed based on any of the Exceptions and a prayer for quashing, is made, the law seems to be well settled that the High Courts can go no further and enlarge the scope of inquiry if the accused seeks to rely on materials which were not there before the Magistrate. This is based on the simple proposition that what the Magistrate could not do, the High Courts may not do. We may not be understood to undermine the High Courts' powers saved by section 482, Cr. P.C.; such powers are always available to be exercised *ex debito justitiae*, i.e., to do real and substantial justice for the administration of which alone the High Courts exist.

However, the tests laid down for quashing an F.I.R. or criminal proceedings arising from a police report by the .

High Courts in the exercise of jurisdiction under section 482, Cr. P.C. not being substantially different from the tests laid down for quashing of a process issued under section 204 read with section 200, the High Courts on recording due satisfaction are empowered to interfere if on a reading of the complaint, the substance of statements on oath of the complainant and the witness, if any, and documentary evidence as produced, no offence is made out of and that proceedings, if allowed to continue, would amount to an abuse of the legal process. This too, would be impermissible if the justice of a given case does not overwhelmingly so demand." (Emphasis supplied)

21. Therefore, it is not permissible to look into the material filed by the petitioners with the petitions and the Court has to rely upon the FIR and the report submitted by the police.

22. Secondly, it was laid down by the Hon'ble Supreme Court in *Aryan* (supra) that the Court is not required to see whether the FIR is malicious or not at the stage of quashing of FIR and this is required to be seen at the time of conclusion of trial. It was observed:

11. One other reason pointed out by the High Court is that the initiation of the criminal proceedings/proceedings is malicious. At this stage, it is required to be noted that the investigation was handed over to the CBI pursuant to the directions issued by the High Court. That thereafter, on conclusion of the investigation, the accused persons have been charge-sheeted. Therefore, the High Court has erred in observing at this stage that the initiation of the criminal proceedings/proceedings is malicious. Whether the criminal proceedings was/were malicious or not, is not required to be considered at this stage. The same is required to be considered .

at the conclusion of the trial. In any case, at this stage, what is required to be considered is a *prima facie* case and the material collected during the course of the investigation, which warranted the

accused to be tried. (Emphasis supplied)

23. The F.I.R. mentions that the petitioners had demanded a dowry and harassed the informant for bringing insufficient of dowry. Petitioner Rajender Kaur said that the rooms of her house were empty and the informant and her family members had not provided sufficient dowry to fill the rooms. The informant was harassed for bringing small vehicle. She was specifically asked to bring a gold kada for Rajender Kaur. Rajender Kaur took the informant's ornaments by saying that the informant could take them as and when needed. When the informant demanded the ornaments these were not returned to her. These allegations prima facie constitute the commission of offences punishable under Section 498-A read with Section 34 and Section 406 of IPC.

24. Mr Kuldeep Singh Chandel, learned counsel for the petitioners read the F.I.R. and the statement of the informant recorded under Section 161 of Cr.P.C. to demonstrate that there are various discrepancies and contradictions due to which the prosecution case cannot be relied upon. He contended that the contradictions showed the falsity of the statements. It was laid down by the Hon'ble Supreme Court in *State of Maharashtra v.*

Maroti, (2023) 4 SCC 298: 2022 SCC OnLine SC 1503 that the High Court exercising the power under Section 482 of Cr.P.C. cannot examine the truthfulness, sufficiency and admissibility of the evidence. It was observed:

21. If FIR and the materials collected disclose a cognizable offence and the final report filed under Section 173(2)CrPC on completion of investigation based on it would reveal that the ingredients to constitute an offence under the POCSO Act and a prima facie case against the persons named therein as accused, the truthfulness, sufficiency or admissibility of the evidence are not matters falling within the purview of exercise of power under Section 482CrPC and undoubtedly they are matters to be done by the trial court at the time of trial. This position is evident from the decisions referred to supra.

22. In the decision in *M.L. Bhatt v. M.K. Pandita* [M.L. Bhatt v. M.K. Pandita, (2023) 12 SCC 821: 2002 SCC OnLine SC 1300: JT (2002) 3 SC 89], this Court held that while considering the question of quashing of FIR the High Court would not be entitled to appreciate by way of sifting the materials collected in course of investigation including the statements recorded under Section 161CrPC.

23. In the decision in *Rajeev Kourav v. Baisahab* [Rajeev Kourav v. Baisahab, (2020) 3 SCC 317 : (2020) 2 SCC (Cri) 51], a two-judge Bench of this Court dealt with the question as to the matters that could be considered by the High Court in quashment proceedings under Section 482CrPC. It was held therein that statements of witnesses recorded under Section 161CrPC being wholly inadmissible in evidence could not be taken into consideration by the Court while adjudicating a petition filed under

Section 482CrPC. In that case, this Court took note of the fact that the High Court was aware that one of the witnesses mentioned that .

the deceased victim had informed him about the harassment by the accused, which she was not able to bear and hence wanted to commit suicide. Finding that the conclusion of the High Court to quash the criminal proceedings, in that case, was on the basis of its assessment of the statements recorded under Section 161CrPC, it was held that statements thereunder, being wholly inadmissible in evidence could not have been taken into consideration by the Court while adjudicating a petition filed under Section 482CrPC. It was also held that the High Court committed an error in quashing the proceedings by assessing the statements recorded under rt Section 161CrPC.

25. In the present case, the charge sheet has been filed and it is for the learned Trial Court to see the truthfulness or otherwise of the allegations. It was laid down by the Hon'ble Supreme Court in *Iqbal v. State of U.P.*, (2023) 8 SCC 734: 2023 SCC OnLine SC 949 that when the charge sheet has been filed, learned Trial Court should be left to appreciate the same. It was observed:

"At the same time, we also take notice of the fact that the investigation has been completed and charge-sheet is ready to be filed. Although the allegations levelled in the FIR do not inspire any confidence more particularly in the absence of any specific date, time, etc. of the alleged offences, yet we are of the view that the appellants should prefer a discharge application before the trial court under Section 227 of the Code of Criminal Procedure (CrPC). We say so because even according to the State, the investigation is over and the chargesheet is ready to be filed before the competent court. In such circumstances, the trial court should be allowed to look into the materials which the investigating officer might have collected forming part of the chargesheet. If any such discharge .

application is filed, the trial court shall look into the materials and take a call whether any case for discharge is made out or not."

26. In *Mohammad Wajit's case*(supra), the Hon'ble Supreme Court had held that the contents of the F.I.R. were of inherently improbable, which is not the case. Hence, the cited judgment does not apply to the present case.

27. rt In *Sanjay Sharma's case* (supra), this Court held that there was a delay of 7 years in reporting the matter to the police, no specific allegations were made against the accused regarding the cruelty on account of dowry and the case was not likely to end up in conviction. In the present, the informant has specifically mentioned that she was harassed because she had brought insufficient dowry. Therefore, this judgment does not apply to the present cases.

28. No other point was urged.

29. Therefore, there is no material to exercise the extraordinary jurisdiction under section 482 of Cr.PC. in the present cases

30. In view of the above, the present petitions cannot be allowed and the same are dismissed.

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31. The observation made hereinabove shall remain confined to the disposal of the petitions and will have no bearing, whatsoever, on the merits of the case.

(Rakesh Kainthla) of Judge 10th January, 2024 (Ravinder) rt